

**BNS 2023**

# Bharatiya Nyaya Sanhita, 2023

*Bharatiya Nyaya Sanhita (BNS), 2023*

**User Query :**

Yesterday I received a WhatsApp message saying that my bank KYC would expire that night. The sender used the bank's logo and sent me a link. I entered my customer ID, password and OTP on the page. Within a few minutes, ₹85,000 was transferred from my account through UPI and net banking. I later found out that the message and website were fake. What legal provisions may apply to this incident?

**Job Id. :**

qwen3-30b/Scenario 1/Bharatiya Nyaya Sanhita (BNS), 2023

**Prepared by :**

NyaySahayak

**Date :**

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**NyaySahayak**

*AI-Powered Legal Intelligence Platform*

APPLICABLE SECTIONS

Section 318

(4) — Cheating and dishonestly inducing delivery of property

The deception resulted in a transfer of ₹85,000.

Section 319

— Cheating by personation

The offender represented the communication as coming from the victim's bank.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- The core BNS theory is cheating: false representation induced the victim to act in a way that caused property loss. Personation is also strongly implicated because the offender pretended to act as the bank.

✓ STRENGTHS & RIGHTS

- 1
- The transfer of money after deception supplies a strong property-loss/inducement nexus.

✗ RISKS & OBLIGATIONS

- 1
- Do not use obsolete IPC numbers or non-existent BNS sections. Whether additional forgery provisions apply depends on proof that a false electronic record/document was made within the statutory definition.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

- 1
- BNS supplies substantive offences; investigative procedure is governed by the BNSS, not by unrelated BNS section numbers.

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